

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2015-5065

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR REGISTRATION TO PRACTICE AS A
PROFESSIONAL COUNSELOR CANDIDATE IN THE STATE OF COLORADO OF
KATHRYNE HOERTH, LPCC NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Kathryne Hoerth ("Applicant") as follows:

1. By application dated February 6, 2015, Applicant applied for registration to practice as a Professional Counselor Candidate ("LPCC") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2015-5065. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about February 6, 2015, Applicant applied for registration as a LPCC in the State of Colorado, and her request to be registered is currently pending.
 - b. On her Application, Applicant answered "yes" to question 3 which states: "Have you ever been denied a certification/license or permission to practice psychotherapy, or permission to take an examination for licensure in any state, country, or U.S. federal jurisdiction?"

c. On her Application, Applicant answered “yes” to question 6 which states: “Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?”

d. On or about August 1, 2013, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 2013T002426, in County Court, Jefferson County, Colorado. She was sentenced to eighteen (18) months of probation.

e. On or around July 9, 2015, Applicant submitted to an evaluation, and the evaluator concluded that Applicant is not safe to practice as a LPCC without treatment and/or monitoring.

f. Applicant has admitted to a history of substance abuse.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S.

6. By virtue of the admissions contained in paragraph 4, Applicant specifically agrees to accept a registration subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a registration. Applicant consents to the following limitations to her registration within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this registration in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's registration to practice as a LPCC in the State of Colorado is hereby placed on probation for eighteen (18) months commencing from the effective date of this Order, the date Applicant was approved for her LPCC, or the date Applicant's therapist was approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Applicant is not practicing in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a LPCC in Colorado, is being monitored by a therapist, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for

establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PSYCHOTHERAPY

11. During the term of probation, Applicant shall undergo psychotherapy with a mental health provider approved by the Board (“therapist”). Within 30 days of the effective date of this Order, Applicant shall submit, in writing, three proposed therapists for the Board’s approval. Applicant shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Applicant or Applicant’s practice. Former employees and business associates fall under this provision.

12. Applicant must have a therapist approved by the Board within two months of the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a therapist is approved.

13. After the Board’s written approval of the therapist, Applicant and the therapist shall enter into a written contract for psychotherapy. The therapist shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the therapist has received a copy of this Order and any relevant documents; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant’s therapist.

14. The therapist shall conduct therapy and report to the Board in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Board based on recommendations of the therapist;
- b. The therapist shall report to the Board in writing both the progress of the psychotherapy and whether Applicant is able to practice with reasonable skill and safety for her clients, and must send a copy of each report to Applicant. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit subsequent reports by the fifth day of every month thereafter for the first 12

months. After submission of the first 12 reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and

- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order, the Board's file, and the therapy evaluator's report, and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Applicant's therapist.

15. If, at any time, the therapist is of the opinion that Applicant is practicing as a LPCC in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to Applicant when s/he sends the report to the Board. Upon submission of such a report, Applicant shall immediately cease the practice of professional counseling.

16. Either Applicant or her therapist may terminate the therapeutic relationship upon written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Applicant does not have another Board-approved therapist prior to the termination, Applicant shall cease the practice as a LPCC until she has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with Applicant and report to the Board in accordance with this Order.

17. Applicant cannot practice as a LPCC during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Board based on the recommendations of the therapist.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

18. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

19. Applicant has completed eighteen (18) months of random urinalysis testing, prior to the effective date of this Order. During the period of probation, Applicant agrees an additional eighteen (18) months of random urinalysis testing monitored and administered by a Board-approved agency to ensure compliance with this Order. Applicant shall continue to submit to urinalysis testing, monitored and administered by a Board-approved agency, on randomly-selected days on a frequency to be determined by the agency and approved by the Board. Applicant shall sign a release and/or execute any necessary waiver to ensure that her therapist may report her progress and compliance with this Order to the Board.

TERMS AND CONDITIONS

20. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

21. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

22. All expenses incurred or associated with therapy monitoring or any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

23. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

24. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

25. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

26. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

27. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

28. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

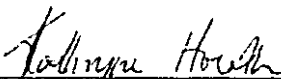
29. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

30. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

31. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

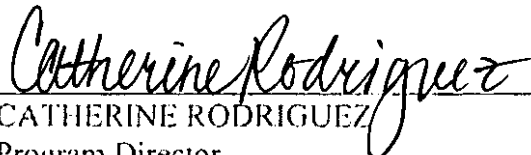
APPLICANT



KATHRYNE HOERTH
LPCC NO. (Pending)

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



CATHERINE RODRIGUEZ
Program Director

Effective this 6th day of
April, 2016.